

25STCP02430 25STCP02430

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C833%2C07%2F29%2F2026

Source SHA-256: d5cc4334f93387e41dbbe04f08ff5d7623f3212c101cc64d99c1cf7805b72ad0

Case Number: 25STCP02430 Hearing Date: July 29, 2026 Dept: 833

Ilsia Maly Martinez Rodriguez Case No. 25STCP02430

v.

Hearing:

May 20, 2026

Location:

Stanley Mosk Courthouse

Department:

833 City of Los Angeles, et al. Judge:

Joseph Lipner

[Tentative] Order on

Petition for an Order Relieving Petitioner from the Provisions of Government

Code Section 945.4

INTRODUCTION

On

July 2, 2024, Petitioner Ilsia Maly Martinez Rodriguez ("Petitioner") was allegedly injured due to an uneven sidewalk and a large pothole and filed her government claims after the deadline. In this petition, Petitioner seeks an order relieving her from the provisions of Government Code section 945.4 for the purposes of suing the County of Los Angeles ("County"). The Court previously granted relief for the purposes of suing the City of Los Angeles (the "City").

The court GRANTS the petition for an order relieving Petitioner from the provisions of Government Code section 945.4 with respect to the County.

LEGAL STANDARD

Before a suit for damages may be filed against a public entity, a claimant must present a timely written claim to the public entity and the claim must have been acted upon by the board or deemed rejected. (Gov. Code § 945.4; *Munoz v. State of California*, (1995) 33 Cal.App.4th 1767, 1777.) A claim relating to a cause of action for injury to person or personal property must be presented to the public entity no later than six months after the accrual of the cause of action. (Gov. Code § 911.2; *Munoz*, 33 Cal. App. 4th at 1776.)

If a claimant fails to present a claim within the statutory period, the claimant may apply “within a reasonable time not to exceed one year after the accrual of the cause of action” to the public entity for leave to present a late claim. (Gov. Code § 911.4, subd. (b).) If the public entity denies leave to present a late claim, a claimant may petition the Court under Government Code § 946.6 for relief from the requirements of Government Code section 945.4. (*Munoz*, supra, 33 Cal.App.4th at 1777.)

Government Code

section 946.6(b) requires that the petition to the court must show each of the following: (1) that the late claim application made to the board was denied or deemed denied; (2) the reason for failure to present the claim within six months of the accrual of the cause of action; and (3) the contents of the claim as required by Government Code section 910.

The petition must be filed within six months after the application to present a late claim to the board was denied or deemed to be denied. (*Ibid.*)

The petitioner

bears the burden of proving by a preponderance of the evidence that the late-claim application was made within a reasonable time and that one of the statutory requirements under Government Code section 946.6(c) was met. (*Drummond v. County of Fresno* (1987) 193 Cal.App.3d 1406, 1410.) Under section 946.4(e), the trial court must make its determination upon the petition, “relying upon any affidavits in support of, or in opposition to, the petition and any additional evidence received at hearing on the petition.” (*Ebersol v. Cowan* (1983) 35 Cal.3d 427,

431.)

Pursuant to

Government Code section 946.6(c)(1), the court may grant relief from section 945.4 if “the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” The showing required of a petitioner seeking relief because of mistake, inadvertence, surprise, or excusable neglect is the same as required by Code of Civil Procedure section 473(b). (*Viles v. State* (1967) 66 Cal.2d 24, 29.) “[I]t is uniformly held that for relief on any or all of the stated grounds it must be shown that one's misconception was reasonable, or that it might have been the conduct of a reasonably prudent person under similar circumstances.” (*Kaslavage v. West Kern County Water Dist.* (1978) 84 Cal.App.3d 529, 539 fn.1.)

“Section 946.6 is

a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary claimant.” (*Ebersol*, supra, 35 Cal.3d at 435.) “[D]oubts will be resolved in favor of the party attempting to get to trial to the end that wherever possible, cases may be heard on their merits.” (*Kaslavage*, supra, 84 Cal.App.3d at 537.)

DISCUSSION

Petitioner was injured on July 2, 2024, so she had until January 2, 2025, to present her claim. (See *Jiminez v. Chavez* (2023) 97 Cal.App.5th 50, 58 [six-month limitations period is the longer of six calendar months or 182 days].) She failed to do so. Petitioner submitted timely late claim applications to Respondents on or about January 27, 2025. (*Kaur Decl.*, ¶ 8, Exh. 1.) The applications were rejected on or about February 24, 2025. (*Id.*, Exh. 2-3.)

Petitioner retained Rafii &

Associates, PC (the “firm”) to handle this case. However, the handling attorney, Alan Blanco, resigned from the firm in December 2024. (*Kaur Decl.*, ¶¶ 6.) Blanco “failed to notify the calendaring department of the important deadlines, causing the firm to forgo the timely submission of government claim forms.” (*Id.*, ¶ 6.) This is sufficient to constitute excusable neglect,

especially because the time period of December 2024 to January 2, 2025, falls during the holidays when employees are out of the office.

The County argues that they will suffer prejudice because they will not have had an opportunity “to make an early investigation of the facts on which a claim is based” which would allow it “to correct the conditions or practices which gave rise to the claim.” (Arntz Builders v. City of Berkeley (2008) 166 Cal.App.4th 266, 279.) This Court is unaware of any other court that has denied leave to file a late claim based on this premise. A party can choose not to investigate a claim because they think their interpretation of the law is correct, but they run the risk of a court overriding their interpretation of the law. That is what has happened here.

CONCLUSION

Based on the foregoing, the court GRANTS the petition for an order relieving Petitioner from the provisions of Government Code section 945.4 with respect to the County.

IT IS SO ORDERED.

Dated: July 29,
2026

Joseph
Lipner

Superior
Court Judge